RONALD DAVISON MUGANGAVARI
versus
SIMON MUTEKETA
and
PRIDE TARWIREI
and
TAFADZWA HOVE
and
THE PROVINCIAL MINING DIRECTOR, MIDLANDS NO

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 29 OCTOBER AND 1 NOVEMBER 2025

Urgent Chamber Application for Interdict,

M Mdisi with Ms Chidyamakono, for the applicant
J Chipangura, for the 1st and 2nd respondents
Ms C Mafunga, for the 3rd respondent

NDUNA J*:* The applicant and the respondents are into mining business. Sometime in 2020 the applicant claims to have obtained or entered into a verbal agreement of sale with the respondents in which the respondent sold their rights into some mining claims to the applicant. The applicant alleges that he paid USD1000 towards the purchase of the mining claims held by the respondents. A total amount of USD10 000 had been charged for the mines. HE alleges that, payment was lawfully withheld pending some process which were supposed to be done by the respondents. The delay in the finalisation of the said process led him to withhold the payment of the balance of the money.

The respondents it seems are said to have proceeded and registered the mines behind its back and are setting some mining machinery at the mine. He therefore requests the court to award him with an interdict to stop any mining pending the hearing of the matter. He has since filed a court application under case number HCBC 1247/25 in which he prays for the final relief.

The relief being prayed for in this application is as follows: -

1. The 1st, 2nd, and 3rd respondents and all those claiming through them are and be hereby interdicted from visiting, entering into, extracting mineral ores or any other mining related activities at Bungwe 847 Mine, Registration Number 17594 BM registered in the names of Mbuya Nehanda Mining Syndicate pending the finalisation of under case number 1247/25

The prayer is being sought as an urgent chamber application. That is the first question for the court to decide. The respondent argues that the matter is not urgent at all. The basis of that position of the matter being non-urgent is premised on the following: -

a) The alleged agreement of sale was concluded on 1 January 2023.

b) Bungwe 847 Mine was registered in July 2023.

c) The applicant claims to have discovered this in May 2024.

d) The application was filed on 27 October 2025; nearly 17 months later.

It is further argued that the urgency is self-created and the applicant is said to have slept on his rights. It is further asserted that the applicant has not made a case which warrants to be treated with any urgency.

On the other hand, the applicant maintains that his application is urgent. He maintains that the urgency emanates from the conduct of the respondents who has moved on some mining equipment on to the mines quite recently. Therefore, the interdict is to stop them from proceeding to commence the mining in view of the outstanding dispute centred on the ownership of the mine. I must reiterate that the applicant claims to be in contract of sale of the mine.

Urgent applications are a critical component of civil procedure, enabling litigants to approach the courts for immediate relief in circumstances where the ordinary procedural timelines would render justice ineffective or moot. There are two key elements that an applicant must satisfy for an urgent application to be entertained:

1. Urgency: The applicant must demonstrate that the matter is genuinely urgent.
2. Lack of Substantial Redress.

The applicant must show that he or she will not obtain substantial redress in due course if the matter were to proceed in the ordinary way. Courts require these elements to be clearly and explicitly set out in the founding affidavit. The mere assertion of urgency, or inconvenience caused by delay, is not sufficient.

Luna Meubel Vervaardigers v *Makin and Another 1977 (4) SA 135 (W)* remains a cornerstone in interpreting urgency. The court warned against the misuse of urgent applications and emphasized that the rules should not be circumvented lightly. It held that:

> 'Practitioners must carefully analyse the facts to determine whether a case really deserves the court's urgent attention.'

The court went on to distinguished between real urgency (such as imminent harm) and self-created urgency, where a litigant delays and then invokes urgency to fast-track relief.

In the case of *East Rock Trading 7 (Pty) Ltd v Eagle Valley Granite (Pty) Ltd 2012 JDR 1836 (GSJ)* the court reiterated that:-

> urgency must be assessed objectively and warned that self-created urgency will not justify departure from the rules. An applicant who sits on their hands and then seeks urgent relief faces dismissal on procedural grounds.

In *Caledon Street Restaurants CC v Monica D'Aviera 1998 (4) SA 10 (C)* the court clarified that:-

> the test is not merely whether the matter is urgent, but whether the applicant cannot obtain substantial redress at a hearing in due course. If eventual relief can still be meaningful, the matter should follow normal timelines. However, the threshold is high: urgency must be real, not contrived, and applicants must convincingly show that waiting for the normal court process would result in injustice. Courts continue to interpret the rule with caution to ensure that it remains a remedy for exceptional circumstances not a procedural shortcut.

The respondent has not yet commenced mining at the mines but have moved mining equipment on the mine. The denial of an intention to start mining is naïve view being had that they have moved some equipment on to the mine. It is clearly important that the applicant be heard before any mining is commenced at the mine in question. As

the applicant asserts that mining is trick in that if the respondents commences and continues to mine, and him pursuing for relief through the ordinary litigation, clearly by the time the case may be heard irreparable damage would have been occasioned; minerals would have been taken.
It is the finding of this court that the matter qualifies to be heard urgently.

The applicant claims to have entered into a contract with the respondents in which the applicant intends to buy the mining rights of the respondents. He has made a bold claim that he has paid USD$1000 towards the deal. The assertion is supported by one of the respondents. That support is weighty in my view. Clearly a matter has been made to stop any activities on the mine before the issue is resolved.

ORDER

Accordingly, the applicant is entitled to the order claimed in this case. It is therefore ordered as follows: -

1. The 1st, 2nd, and 3rd respondents and all those claiming through them are and be hereby interdicted from visiting, entering into, extracting mineral ores or any other mining related activities at Bungwe 847 Mine, Registration Number 17594 BM registered in the names of Mbuya Nehanda Mining Syndicate pending the finalisation of under case number 1247/25

Mutendi, Mudisi and Shumba, applicant's legal practitioners
Muzenda and Chatsama, 1st and 2nd respondents' legal practitioners
Caroline and Associates, 3rd respondent's legal practitioners